

1/13

File No: EXP202202885

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On June 28, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against FESTINA LOTUS S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202202885

IMI Reference: A56ID 375257 - Case Register: 458465

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the data protection authority of France (CNIL) on September 16, 2021. The complaint is directed against FESTINA LOTUS S.A., with CIF A08663684 (hereinafter, FESTINA). The reasons for the complaint are as follows:

The complainant requested the deletion of their account from the FESTINA website on two occasions, on July 23, 2021, and August 7, 2021, without receiving a response.

Along with the complaint, the following is provided:

- Screenshot of an email sent by the complainant to dpo@festina.com, dated July 23, 2021, with the following content: "Bonjour, merci de clôturer mon compte Festina enregistré sous l'adresse mail "****EMAIL.1" et de supprimer toutes les informations personnelles me concernant de vos bases de données." [Unofficial translation: "Hello, please close my Festina account registered under the email address «***EMAIL.1» and delete all personal information about me from your databases."]

C/ Jorge Juan, 6

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28001 – Madrid

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2/13

- Screenshot of an email sent by the complainant to dpo@festina.com, dated August 7, 2021, with the following content: "Bonjour, suite à mon précédent message du 23 juillet dernier, je redemande la suppression du compte enregistré sous l'adresse mail "****EMAIL.1" de votre site internet, ainsi que la suppression des informations personnelles me concernant de vos bases de données, conformément à la Loi Informatique et Libertés de la C.N.I.L. Cette précédente demande est en effet restée sans suite. Merci." [Official translation: "Hello, following my message from July 23, I request the deletion of the account registered under the email address «***EMAIL.1» from your website, as well as the deletion of my personal information from your databases, in accordance with the Data Protection Act of the C.N.I.L. This previous request has indeed gone unanswered. Thank you."]

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among member states, and the exchange of information, the aforementioned complaint was transmitted on March 9, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) on March 10, 2022. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its

cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that FESTINA has its registered office and sole establishment in Spain.

The data processing carried out affects individuals in several member states. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, acting as an “interested supervisory authority,” in addition to the data protection authority of France, are the authorities of Sweden, Belgium, Hungary, Slovakia, Italy, Poland, and the German authority of Lower Saxony. All of them by virtue of Article 4.22 of the GDPR, given that the individuals residing in the territory of these supervisory authorities are substantially affected, or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On June 7, 2022, in accordance with the then in-force Article 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

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www.aepd.es
28001 – Madrid
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3/13

On November 30, 2022, a document was submitted to the AEPD on behalf of FESTINA in response to a request for information (this request for information was accessed by FESTINA on November 15, 2022), in which the following information was provided, among others:

1. Declaration that the claimant registered their account through the form on the website www.festina.com, and subsequently subscribed to the newsletter service. A screenshot of the audit log is provided, showing the date and time when the claimant registered their account (April 14, 2021) and when they subscribed to the newsletter service (April 15, 2021).
2. Declaration that the claimant subsequently unsubscribed from the newsletter service on June 23, 2021, using the link provided in a communication for that purpose. A copy of the audit log for a communication sent on June 23, 2021, is provided, which shows that an unsubscription was processed. This audit log also shows a record consistent with the subscription, dated April 15, 2021.
3. Indication that the communications dated July 23, 2021, and August 7, 2021, sent by the claimant to the address dpo@festina.com could not be addressed by the data protection officer because “Given the large amount of spam emails that email accounts receive, the account filter interpreted that the email from (...) with the extension “(...)” was unwanted mail and for this reason was not detected and was never answered.”
4. Declaration that “the online mechanism indicated in the privacy policy to exercise the rights of access, cancellation, rectification, opposition, portability, etc. before FESTINA LOTUS SA, was another, articulated through the link indicated in the privacy policy (www.corporate-ethicline.com/festina),” and they declare that the claimant exercised their right to erasure through this channel on June 15, 2022, leading to the deletion of their data, which was communicated to the claimant via an email sent from the address lopd@festina.com on July 13, 2022.
5. Screenshot of the record of a request from the “CORPORATE-ETHIC LINE” channel dated June 15, 2022, from the claimant, with the following text: “Bonjour, je sollicite la clôture de mon compte client enregistré sous l'adresse mail “***EMAIL.1”, ainsi que mon droit d'annulation des données personnelles en demandant la suppression de toutes les informations personnelles me concernant de vos bases de données, conformément à l'article 17 du RGPD et l'article 5 du LPD. Merci.” [Unofficial translation: “Hello, I request the closure of my client account registered under the email address “***EMAIL.1”, as well as my right to erasure of my personal data by requesting the deletion of all

personal information concerning me from your databases, in accordance with Article 17 of the GDPR and Article 5 of the LPD. Thank you.”]

6. Screenshot of an email dated July 13, 2022, sent from lopd@festina.com to the address ***EMAIL.1 with an attached PDF document and the following content:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/13

“Good evening, (...),

In the attached document, you will find the certificate confirming that all your personal data has been deleted from our databases and other information of interest to you.

Sincerely,

FESTINA LOTUS, S.A. - Data Protection Officer”

[Unofficial translation:

“Good evening, (...),

In the attached document, you will find the certificate that all your personal data has been deleted from our databases and other information of interest to you.

Sincerely,

FESTINA LOTUS, S.A. - Data Protection Officer”]

7. Copy of the “Document justifying the exercise of data deletion,” consisting of a signed communication addressed to the claimant with the following content:

“In accordance with your request made through our ethical channel of the corporate line, and in accordance with the provisions of the General Data Protection Regulation (EU) 2016/679, Organic Law 3/2018, of December 5, on the protection of data and the guarantee of digital rights, and Royal Decree 1720/2007, of December 21, I am writing to you in my capacity as a representative of FESTINA LOTUS, S.A., whose registered office is located at 28002 - Madrid, Calle Velázquez, 150, 3º 1ª, to certify the following:

That in accordance with your request, we have examined the existence of your personal data in our databases and we inform you that your data is no longer included in any of our company's databases. We also remind you that you selected the unsubscribe option on July 23, 2021.

For all these reasons, and given that our company wishes to scrupulously respect your wishes, we inform you that this will be the last communication we have with you.

Best regards.”

[Unofficial translation:

“In accordance with your request made through our ethical channel of the corporate line, and in accordance with the provisions of the General Data Protection Regulation (EU) 2016/679, Organic Law 3/2018, of December 5, on the protection of data and the guarantee of digital rights, and Royal Decree 1720/2007, of December 21, I am addressing you in my capacity as a representative of FESTINA LOTUS, S.A., with registered office at 28002 - Madrid, Calle Velázquez, 150, 3rd 1st, to certify the following:

That, in accordance with your request, we have examined the existence of your personal data in our databases and inform you that your data is no longer included in any of our company's databases. We also remind you that you selected the unsubscribe option on July 23, 2021.

For all these reasons, and given that our company wishes to scrupulously respect your wishes, we inform you that this will be the last communication we have with you.

Best regards.”]

8. Indication that the channel for exercising data protection rights that was previously at the web address www.corporate-ethicline.com/festina, at the time of submitting the document had been changed to the address <https://corporate-line.com/cnormativo-grupofestina>.

On April 11, 2023, the historical content of the privacy policy of the FESTINA website in French (“<https://festina.com/fr-FR/legal/confidentialite>”) and in Spanish

(<https://festina.com/es-ES/legal/privacidad>) was obtained through the website <https://web.archive.org>, yielding the following results:

9. On the website <https://web.archive.org>, the historical content of the previous privacy policy in French closest to the date of submission of the requests for the exercise of the right to deletion by the claimant is dated June 20, 2021, and within its section dedicated to the exercise of data protection rights, it states, among other things, the following:

"Customers of FESTINA.COM have acknowledged and can exercise the rights of access, cancellation, rectification, and opposition before FESTINA LOTUS SA, either by mail to Vía Layetana nº 20 4th floor, 08003 Barcelona, indicating your personal data and attaching a copy of your ID, or via the following link: www.corporate-ethicline.com/festina.

In case of questions regarding the protection of your data, you can contact our group data protection officer by writing to the following postal address:

FESTINA LOTUS SA

Data Protection Officer

Via Layetana 20, fourth floor

08003 Barcelona (Spain)

Or by email at the following address:

Data Protection Officer: dpo@festina.com"

[Unofficial translation:

"Customers of FESTINA.COM have acknowledged and can exercise the rights of access, cancellation, rectification, and opposition before FESTINA LOTUS SA, either by postal mail to Vía Layetana nº 20 4th floor, 08003 Barcelona, indicating their personal data and attaching a copy of their ID, or through the following link: www.corporate-ethicline.com/festina.

In case of a question related to the protection of your data, you can contact our group data protection officer by writing to the following postal address:

FESTINA LOTUS S.A.

Data Protection Officer

C/ Jorge Juan, 6

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28001 – Madrid

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6/13

Via Layetana 20, fourth floor

08003 Barcelona (Spain)

Or by email to the following address:

Data Protection Officer: dpo@festina.com

FIFTH: According to the report obtained from the AXESOR tool, the entity FESTINA LOTUS S.A. is a "Group Matrix" type company established in 1980, with a turnover of 117,120,920 euros in 2021.

SIXTH: On May 24, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on the same day this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of the present sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.5 of the LOPDGDD.

Within the stipulated period, the interested supervisory authorities did not submit relevant and justified objections, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European

Parliament and of the Council of April 27, 2016, regarding the protection of natural persons concerning the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since FESTINA collects and retains, among others, the following personal data of individuals: name and surname, ID number, postal or electronic addresses, economic and/or banking data, among other treatments.

FESTINA carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Additionally, this is a cross-border processing, given that FESTINA is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), in relation to the competence of the main supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the main supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, FESTINA has its only establishment in Spain, so the Spanish Agency for Data Protection is competent to act as the main supervisory authority.

For its part, Article 17 of the GDPR regulates the right to erasure (right to be forgotten).

III

Right to erasure (Right to be forgotten)

Article 17 "Right to erasure ('the right to be forgotten') of the GDPR states:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be deleted to comply with a legal obligation established in Union Law or the laws of the Member States applicable to the data controller;
- f) the personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

(...)

In the present case, it has been established that the claimant requested the deletion of their personal data on three occasions. The first two requests, dated July 23, 2021, and August 7, 2021, were made to the email address (dpo@festina.com) and were not addressed at any time.

The third request was made through the designated channel for this purpose

(www.corporate-ethicline.com/festina) on June 15, 2022, and after the activation of the protocol, the claimant's data was deleted, with this particular communicated to them on July 13, 2022, from the account LOPD@FESTINA.COM, attaching a document justifying the requested data deletion. Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the claimant initially requested the deletion of their personal data on July 23 and August 7, 2021, at the email account (dpo@festina.com), a request that was not addressed, considering that these facts could constitute an infringement attributable to FESTINA for violation of Article 17 of the GDPR.

IV

Classification and qualification of the infringement of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22;

[...]"

For the purposes of the statute of limitations, Article 74 "Minor infringements" of the LOPDGDD indicates:

"Minor infringements shall be considered and shall prescribe after one year for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

C/ Jorge Juan, 6

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28001 – Madrid

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9/13

[...]

c) Not addressing requests to exercise the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, unless the provisions of Article 72.1.k) of this organic law apply."

IV

Corrective powers

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 17 of the GDPR, allows for an initial sanction of €1,000 (one thousand euros).

V

Imposition of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, without prejudice to what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, according to the provisions of Article 83.2 of the GDPR.

Likewise, the measures that may be adopted in the resolution that concludes the procedure, in relation to the exercise of rights, would apply in all countries of the European Union where FESTINA operates. It is warned that failure to comply with the requirements of this body could be considered an

administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct could motivate the opening of a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against FESTINA LOTUS S.A., with NIF A08663684, for the alleged infringement of Article 17 of the GDPR, classified in Article 83.5 of the GDPR.

C/ Jorge Juan, 6
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28001 – Madrid
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10/13

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documentation from the IMI that has led to the preliminary investigation actions, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the preliminary actions prior to the initiation of this sanctioning procedure and the documentation from the IMI regarding the draft decision.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 1,000 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to FESTINA LOTUS S.A., with NIF A08663684, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 800 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure.

The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 600 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (800 euros or 600 euros), it must do so by depositing it into account No. IBAN:

ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., C/ Jorge Juan, 6

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11/13

indicating in the concept the reference number of the file that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On August 10, 2023, the respondent has proceeded to pay the sanction in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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28001 – Madrid

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12/13

Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants competence to initiate and resolve this procedure to the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the

determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202202885, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to FESTINA LOTUS S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for the Protection of Data

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